



How does diluting local village consent rules threaten the land rights of forest communities?

GS Paper II
Governance
Tribal Rights and
Decentralisation

📖 KNOWLEDGE POINTS

- **Submerging direct victims:** A 70% approval rule lets companies ignore the most damaged villages. For example, a village losing all its land under a dam can be easily outvoted and displaced by distant villages facing little harm.
- **Manipulating village assemblies:** Altering who counts as a tribal community member allows outsiders or officials to divide local assemblies. This makes it easy for project developers to engineer artificial majority support and bypass real community opposition.
- **Dangerous regulatory silence:** The Tribal Affairs Ministry is stepping aside instead of defending forest laws. This leaves big ministries unchecked to quietly change land diversion rules without democratic debate or proper legal protection for tribals.
- **Historical injustice correction:** Parliament passed the Forest Rights Act in 2006 to return customary land ownership to indigenous tribes, ending centuries of unfair displacement that treated traditional forest dwellers as illegal encroachers on ancestral lands.
- **Climate protection services:** Indigenous groups protect biodiversity and carbon sinks through customary forest conservation practices. Stripping their land authority threatens traditional ecological management essential for achieving India's long-term national climate and green development commitments.

📅 QUICK FACTS

- Parliament passed the Forest Rights Act in 2006 to recognize customary land tenure and rectify historical injustices faced by Scheduled Tribes and Other Traditional Forest Dwellers across India.
- The Forest Conservation Rules of 2022 allowed the Union government to grant final forest diversion approval before state authorities verify and settle forest rights with local gram sabhas.
- The **Teesta-IV hydroelectric project** in Sikkim reflects the conflict between expanding national green energy infrastructure and addressing local tribal resistance against ecological destruction and community displacement.
- The 2013 Land Acquisition Act mandates prior consent of at least 70% of affected families for **public-private partnerships** and 80% for private projects before acquiring land.

🎯 KEY TAKEAWAY

Allowing partial gram sabha consent leaves directly affected forest hamlets vulnerable to forced displacement, eroding constitutional tribal safeguards and weakening democratic decision-making in vital environmental and resource diversion processes.

🏛️ MAINS PERSPECTIVE

Discuss policy measures needed to balance urgent national infrastructure expansion with statutory forest rights of tribal communities?

India faces an acute policy dilemma between scaling clean infrastructure for macroeconomic growth and upholding statutory rights granted to tribal communities. Reconciling this friction demands transparent, participatory, and legally grounded governance mechanisms.

First, the Union Environment and Tribal Affairs ministries must establish unified inter-ministerial guidelines ensuring forest clearance processes require verifiable prior informed consent before any land diversion occurs. Diluting local consent into artificial majorities marginalizes the most vulnerable hamlets directly facing submergence. Second, project planning should mandate cumulative social impact assessments and cost-benefit evaluations that account for ecological degradation alongside economic returns. Where diversion is strictly unavoidable, fair benefit-sharing mechanisms, such as equity participation or direct revenue allocation from infrastructure projects, must replace one-time transactional compensations. Furthermore, institutional capacity within district administrations and gram sabhas must be augmented to map customary community rights accurately and prevent demographic manipulation of village assemblies. Finally, legal synchronization among the Forest Rights Act, PESA, and land acquisition statutes will curb bureaucratic ambiguity, ensuring industrial expansion respects grassroots democracy without causing perpetual developmental stalemates.

Sustainable development requires integrating indigenous stewardship into India's growth path. Strengthening statutory decentralization transforms forest-dependent populations from passive victims of displacement into active, dignified partners in achieving equitable national green progress.

❓ DAILY MCQs

- With reference to the Provisions of the Panchayats (Extension to Scheduled Areas) Act, 1996 (PESA), consider the following statements:
 - Every village in **Fifth Schedule areas** must have a Gram Sabha competent to safeguard community resources and customary identity.
 - Prior consultation with the Gram Sabha or the Panchayats at the appropriate level is mandatory before acquiring land in Scheduled Areas for development projects.
 Which of the statements given above is/are correct?
 - 1 only
 - 2 only
 - Both 1 and 2
 - Neither 1 nor 2
- Under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, what minimum threshold of prior consent of affected families is legally mandated for acquiring land for **Public-Private Partnership (PPP)** projects?
 - 50%
 - 70%
 - 80%
 - 100%
- Consider the following statements
 - regarding the governance of forest rights in India:
 - The Ministry of Tribal Affairs is the **nodal administrative ministry** for implementing the Forest Rights Act, 2006.
 - In-principle Stage-I forest clearance under statutory environmental rules removes the legal necessity of obtaining Gram Sabha recognition for customary rights.
 Which of the statements given above is/are correct?
 - 1 only
 - 2 only
 - Both 1 and 2
 - Neither 1 nor 2

Answer Key • 1-C • 2-B • 3-A



How do procedural delays and political friction threaten timely judicial appointments in High Courts?

GS Paper II
Indian Judiciary
Appointment of
Judges

📖 KNOWLEDGE POINTS

- **Consultation timeline ambiguity:** The Memorandum of Procedure lacks a fixed deadline for states to respond. Consequently, state governments can sit on files indefinitely, stalling judicial appointments across multiple High Courts without recording formal objections.
- **Politicising judicial rulings:** Ruling parties often view unfavourable court decisions as personal attacks. When governments face strict judicial scrutiny or sensitive cases, they sometimes weaponise procedural consultations to register displeasure and delay appointments.
- **Deemed consent solution:** Fixing strict time limits for state consultations can end delays. A clear deadline, followed by deemed approval, prevents political disputes from stalling institutional appointments and paralysing higher judicial administration.
- **Article 217 mandate:** Under Article 217 of the Constitution, the President appoints High Court judges after consulting the Chief Justice of India, the state Governor, and, for other judges, the High Court Chief Justice.
- **Rising judicial vacancies:** Delays in finalizing appointments worsen vacancy backlogs in High Courts nationwide. This institutional friction directly increases case pendency and prolongs waiting periods for ordinary citizens seeking **constitutional remedies** and timely justice.

📋 QUICK FACTS

- The Supreme Court Collegium recommended the elevation of Justice Ashwani Kumar Mishra alongside three other High Court Chief Justices on August 6 before the Centre notified the appointment in September.
- The Supreme Court established a strict benchmark directing the Union government to process and clear judicial appointment names reiterated by the Collegium within three to four weeks.
- Under the Memorandum of Procedure, the Union Law Ministry consults concerned state Chief Ministers and Governors before proposing judicial appointments to the Prime Minister and the President.
- Article 217 of the Constitution governs the appointment of High Court judges, mandating **presidential appointment** in consultation with the Chief Justice of India, the state Governor, and the Chief Justice.

🎯 KEY TAKEAWAY

Without enforceable consultation deadlines in the Memorandum of Procedure, partisan executive disputes easily stall judicial appointments, eroding institutional decorum, undermining constitutional propriety, and worsening vacancy crises across higher courts.

🏛️ MAINS PERSPECTIVE

Evaluate the friction between judicial independence and executive consultation in appointing High Court judges, suggesting institutional safeguards?

India balances two core priorities when picking High Court judges: protecting judicial independence and allowing executive consultation under Article 217. Because guidelines lack strict deadlines, standard constitutional checks often trigger ugly political fights.

The core clash lies in defining what consultation really means. The Supreme Court Collegium leads selections, but Union and state governments must review candidate integrity, intelligence reports, and professional background. Conflict intensifies when governments exploit gaps in the Memorandum of Procedure (MoP) to sit on files, effectively using pocket vetoes after unfavourable rulings. Stalling appointments leaves bench vacancies high, worsens case backlogs, and delays justice for citizens. At the same time, completely cutting out the executive hurts public accountability. To fix this, the MoP must set a strict six-week deadline for state and Union replies, after which consent is legally presumed. A permanent research secretariat should also assist the Collegium with objective vetting, while public rejection criteria would prevent arbitrary vetoes.

Clear timelines, transparent candidate evaluation, and institutional mutual respect will stop political disputes from delaying appointments, safeguarding both judicial independence and democratic accountability.

❓ DAILY MCQs

- Under Article 217(1) of the Constitution of India, the President appoints the Chief Justice of a High Court after mandatory consultation with which **constitutional functionaries**?
A. Chief Justice of India and the Governor of the State
B. Chief Justice of India, the Governor, and the State Chief Minister
C. Chief Justice of India and the Union Law Minister
D. Supreme Court Collegium and the State Legislative Assembly
- With reference to the Memorandum of Procedure (MoP) for judicial appointments in India, consider the following statements:
1. It is an **administrative framework** mutually framed by the Executive and the Judiciary following the Second and Third Judges Cases.
2. It sets an explicit, legally binding time limit within which state governments must communicate their concurrence for High Court appointments.
Which of the statements given above is/are correct?
A. 1 only
B. 2 only
C. Both 1 and 2
D. Neither 1 nor 2
- In which of the following landmark judgments did the Supreme Court strike down the National Judicial Appointments Commission (NJAC) Act, declaring the primacy of the Collegium system as an integral part of the **basic structure**?
A. First Judges Case (1981)
B. Second Judges Case (1993)
C. Third Judges Case (1998)
D. Fourth Judges Case (2015)

Answer Key • 1-A • 2-A • 3-D



Why does promoting private space manufacturing cause anxiety regarding ISRO's future autonomy and funding?

GS Paper III
Science and Tech
Space Security
and Indigenisation

KNOWLEDGE POINTS

- **Commercial revenue loss:** Handing over routine launch vehicle manufacturing to private firms strips ISRO of vital commercial earnings. Relying entirely on annual government budgets risks limiting funds needed for expensive research and ambitious deep-space exploration projects.
- **Scientist retention concerns:** Tightening resignation rules highlights growing fears over losing top talent. As private **aerospace startups** offer attractive opportunities, public research agencies struggle to keep experienced scientists without competitive incentives and clear organizational roles.
- **Preserving operational independence:** Staff worry that changing institutional mandates could invite bureaucratic interference. ISRO's historic success relied on significant operational autonomy, which must be protected even as the agency shifts toward guiding and mentoring private commercial players.
- **IN-SPACe single-window mandate:** The Indian National Space Promotion and Authorization Centre acts as an autonomous single-window regulator. It facilitates private players using ISRO infrastructure, coordinates technology transfers, and promotes non-government entities across space activities.
- **Space economy expansion:** India currently accounts for approximately two percent of the **global space economy**. Expanding private satellite manufacturing and commercial launch capabilities aims to capture a much larger global market share and generate skilled engineering jobs.

QUICK FACTS

- IN-SPACe operates as an autonomous single-window nodal agency under the Department of Space to authorize, supervise, and promote private sector participation across Indian space activities.
- India currently holds around a two percent share of the **global space economy** and aims to expand this footprint significantly through domestic private space sector participation.
- ISRO transferred the technology of its Small Satellite Launch Vehicle to public-sector unit Hindustan Aeronautics Limited, transitioning launch manufacturing outside the premier national space agency.
- The Department of Space recently issued an administrative memorandum tightening voluntary retirement and resignation norms for senior scientific personnel engaged in critical national missions like Gaganyaan.

KEY TAKEAWAY

Delegating commercial rocket manufacturing to private industry raises acute funding and talent retention concerns, requiring comprehensive policy safeguards to preserve ISRO's core financial strength, institutional autonomy, and pioneering exploration capabilities.

MAINS PERSPECTIVE

Evaluate the opportunities and challenges of commercialising India's space sector while preserving the autonomy of public research institutions?

Commercialising the space sector presents transformative economic and strategic opportunities, yet balancing private participation with the institutional autonomy and financial sustainability of premier public research bodies like ISRO remains a critical governance test.

Privatisation unlocks immense potential by enabling non-governmental entities to scale satellite fabrication, orbital logistics, and geospatial services. Offloading routine manufacturing and commercial launches expands India's share in the **global space economy**, attracts foreign investment, and fosters high-skill aerospace employment. Furthermore, it allows ISRO to pivot from assembly-line production toward advanced scientific pursuits, **interplanetary exploration**, and fundamental R&D; However, serious structural challenges emerge. Stepping away from lucrative commercial launches deprives public agencies of self-generated revenues, creating budgetary vulnerabilities and over-dependence on annual fiscal allocations. Moreover, aggressive talent poaching by well-funded commercial startups risks depleting public institutions of domain expertise, prompting restrictive administrative controls on scientific personnel. Bureaucratic overreach through regulatory bodies like IN-SPACe also risks subordinating pure scientific research to commercial dictates. To safeguard public institutions, the state must establish robust revenue-sharing models from private technology transfers and institutionalise autonomous, multi-year research endowments.

Sustainable space commercialisation demands a complementary ecosystem rather than competitive displacement. Clear statutory boundaries, stable exploration funding, and flexible talent-retention frameworks will ensure ISRO preserves its scientific pre-eminence while anchoring India's commercial space expansion.

DAILY MCQs

- Which of the following functions falls directly under the mandate of the Indian National Space Promotion and Authorization Centre (IN-SPACe)?
A. Directly operating commercial satellite launch services in global markets
B. Single-window authorization and promotion of non-government entities in space activities
C. Solely manufacturing cryogenic propulsion systems for **interplanetary exploration** missions
D. Managing astronomical research institutions under the Department of Atomic Energy
- With reference to India's space sector governance, consider the following statements:
1. **NewSpace India Limited** (NSIL) is the commercial arm of the Department of Space mandated to commercially exploit R&D; outcomes of ISRO.
2. Under the Indian Space Policy, ISRO completely ceases all planetary exploration and focuses solely on handholding private startups.
Which of the statements given above is/are correct?
A. 1 only
B. 2 only
C. Both 1 and 2
D. Neither 1 nor 2
- Regarding launch vehicle developments in India, consider the following statements:
1. The Small Satellite Launch Vehicle (SSLV) was developed by ISRO primarily to cater to the **launch-on-demand** small satellite market.
2. ISRO has formally transferred the manufacturing technology of SSLV to private consortiums via competitive auction.
Which of the statements given above is/are correct?
A. 1 only
B. 2 only
C. Both 1 and 2
D. Neither 1 nor 2

Answer Key • 1-B • 2-A • 3-A